

Appeal Cases

BEFORE

THE HOUSE OF LORDS

(ENGLISH—IRISH—AND SCOTTISH)

AND

THE JUDICIAL COMMITTEE

OF

HIS MAJESTY'S MOST HONOURABLE
PRIVY COUNCIL.

[HOUSE OF LORDS.]

MANCINI APPELLANT; H. L. (E.)*
AND
DIRECTOR OF PUBLIC PROSECUTIONS RESPONDENT. ¹⁹⁴¹
Oct. 2, 3, 16.

Criminal law—Murder—Provocation—Reduction of crime to manslaughter—Summing-up—Duty of judge.

On the trial of a person charged with murder it is the duty of the judge in his summing-up to deal adequately with any view of the evidence given which might reduce the crime to manslaughter. The fact that the defending counsel may not have stressed the possibility of such an alternative case does not relieve the judge from directing the jury to consider it, if there is material which justifies such a direction, but the possibility of a verdict of manslaughter instead of murder arises only when the evidence is such as might satisfy the jury as the judges of fact that the elements are present which would so reduce the crime, or might induce a reasonable doubt whether this may not be the right view. Every kind of provocation, however, will not reduce the crime to manslaughter. To have that effect the provocation must be such as temporarily to deprive the person provoked of the power of self-control, as the result of which he commits the act which causes death. The test to be applied is that of the effect of the provocation on a reasonable man, so that an unusually excitable or pugnacious person is not entitled to rely on provocation which would not have led an ordinary person to act as he did. It is

* *Present:* VISCOUNT SIMON L.C., VISCOUNT SANKEY, LORD RUSSELL OF KILLOWEN, LORD WRIGHT and LORD PORTER.

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important to consider whether a sufficient interval has elapsed since the provocation to allow a reasonable person time to cool, and account must also be taken of the instrument with which the homicide has been effected. The mode of resentment must bear a reasonable relationship to the provocation if the offence is to be reduced to manslaughter.

Dictum of Lord Reading C.J. in *Rex v. Hopper* [1915] 2 K. B. 431, 435, approved.

Woolmington v. Director of Public Prosecutions [1935] A. C. 462, discussed and explained.

Decision of the Court of Criminal Appeal affirmed.

APPEAL from the Court of Criminal Appeal.

The appellant was found guilty at the Central Criminal Court of the murder of one Distleman and was sentenced to death, that sentence being affirmed by the Court of Criminal Appeal.

At the material time the appellant was the manager of the Palm Beach Bottle Party, which had club premises in Wardour Street, W. Distleman was a member of the club, and in the early morning of May 1, 1941, the appellant inflicted on him a fatal wound, the nature of which showed that it must have been caused by an instrument with a two-edged blade. At the trial the appellant set up the plea of self-defence. He admitted that he had such an instrument in his pocket, and he said that in some fighting or struggling which took place in the club he was attacked by Distleman, whereupon in self-defence he drew the blade from his pocket and struck out blindly without aiming at any particular person, but in fact he inflicted a blow on Distleman which proved fatal shortly afterwards. The jury found the appellant guilty of murder. An appeal against the conviction was dismissed by the Court of Criminal Appeal, but the Attorney-General gave his certificate that the decision of that court involved a point of law of exceptional public importance, and that, in his opinion, it was desirable that a further appeal should be brought. Accordingly, this appeal came before the House.

Hector Hughes K.C. and *F. D. Levy* for the appellant. The trial judge did not sufficiently direct the jury on the question of provocation by Distleman, of which there was abundant evidence. He should have pointed out to the jury the facts

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as to provocation and should have directed them that if the act was provoked the appellant could not be convicted of murder. We rely on the rule enunciated by Lord Sankey in *Woolmington v. Director of Public Prosecutions* (1), that "if the jury are either satisfied with his [the prisoner's] explanation or, upon a review of all the evidence, are left in reasonable doubt whether, even if his explanation be not accepted, the act was unintentional the prisoner is entitled to be acquitted." We also rely on *Rex v. Hopper* (2), where Lord Reading C.J. said (3): "We do not assent to the suggestion that, as the defence throughout the trial was accident, the judge was justified in not putting the question as to manslaughter. Whatever the line of defence adopted by counsel at the trial of a prisoner we are of opinion that it is for the judge to put such questions as appear to him properly to arise upon the evidence, even although counsel may not have raised some question himself. In this case it may be that the difficulty of presenting the alternative defences of accident and manslaughter may have actuated counsel in saying very little about manslaughter, but if we come to the conclusion, as we do, that there was some evidence upon which a question ought to have been left to the jury as to the crime being manslaughter only, we think that this verdict of murder cannot stand." In this case the judge omitted to give the jury any proper definition of provocation. All that was said on the subject was vague and indeterminate.

Sir Donald Somervell A.-G., G. B. McClure and Christmas Humphreys for the respondent. Where there is evidence of an intentional act which causes death and provocation is not established, there is no onus on the prosecution to negative provocation, nor is there any duty on the judge at the trial to direct the jury to speculate as to incidents which, if they had occurred, could have been, but were not, put in evidence. In this case the jury were clearly told that, if they had any reasonable doubt, the offence would either be

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(1) [1935] A. C. 462.

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(3) Ibid. 435.

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The facts show that the appellant was the aggressor. Complaint has been made of the summing-up, but the only criticism to which it is subject is that it was unduly favourable to the appellant. To justify the use of a lethal weapon the circumstances must indeed be grave, and here there was no justification at all.

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Hughes K.C. replied.

The House took time for consideration.

1941. Oct. 16. VISCOUNT SIMON L.C. My Lords, on July 4, at the Central Criminal Court, the appellant, Antonio Mancini, was found guilty by the jury of the murder of Harry Distleman, and was sentenced to death by the presiding judge, Macnaghten J. Mancini appealed on the ground of misdirection to the Court of Criminal Appeal where there were two hearings. The first took place on August 20 and as a result re-argument before a full court was ordered. The case was accordingly re-heard on September 3 before the Lord Chief Justice and four other judges, when the appeal was dismissed. On September 11 the Attorney-General, acting under s. 1, sub-s. 6, of the Criminal Appeal Act, 1907, gave his certificate that the decision of the Court of Criminal Appeal involved a point of law of exceptional public importance, and that, in his opinion, it was desirable in the public interest that a further appeal should be brought. Accordingly, the present appeal has come before this House. It is the third appeal on a conviction for murder to reach the House of Lords since the passing of the Criminal Appeal Act thirty-four years ago.

The appellant was the manager of an enterprise called the Palm Beach Bottle Party, with premises in the basement of 37 Wardour Street, W. On the ground floor of that building were the quarters of a club, on which nothing turns, and on the first floor there was housed the West End Bridge and Billiards Club, of which the appellant was a member. Distleman was also a member of this club, and between three

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and four o'clock on the morning of May 1, when he and a number of other members (including a man named Fletcher and Mancini himself) were on the premises, he received a fatal wound in the left shoulder. A main artery was severed. The nature of the wound established that it must have been caused by an instrument with a two-edged blade, with a sharp point and sharp sides, at least five inches long. The appellant at first told the police that he saw a dagger-knife on the floor and picked it up as Fletcher was advancing to strike him with a chair, but at the trial he admitted that he had such an instrument in his pocket—he described it as a knife about seven inches long—which he said he had bought some weeks previously because his life was threatened by gangs of roughs. He said that, in the course of fighting or struggling which took place among a number of persons present in the club, he was attacked by Distleman, when he drew the dagger from his pocket and struck out blindly, though without aiming at any particular individual.

There had been an earlier violent altercation in the club when the appellant was not present, as the result of which Fletcher sustained head wounds and had to go with his friend Distleman to Charing Cross hospital, where two stitches were put in. It was after this that he and Distleman returned to the club. There was evidence that Fletcher was at enmity with the appellant, owing to the latter having at an earlier date taken steps to exclude Fletcher from the Palm Beach Bottle Party. When Fletcher and Distleman re-entered the club and found the appellant there, the appellant, according to the evidence of the club doorkeeper, came across to Fletcher and seized him by the neck or top of the coat. Distleman went to Fletcher's aid, seized the appellant's shoulder or arm, and aimed a blow at him. It is at this point that the appellant whipped out his dagger and inflicted the fatal blow on Distleman, and a little later slashed Fletcher's hand so that he was severely cut. Distleman, mortally injured, made his way out of the room, but he collapsed at the bottom of the stairs and died in a few minutes. The appellant gave evidence that he threw his dagger away, and consequently this weapon

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H. L. (E.) was not forthcoming, but the police constable, who shortly afterwards came on the scene, found a small pocket-knife with its blade opened lying at the side of the dead Distleman in the doorway leading to the street. The pocket-knife was proved to have belonged to the dead man, but how it came to be lying open beside him at the bottom of the stairs was not explained. Shortly after these events the appellant decided to go to the police and make a statement, but at that time he was not aware of the discovery of Distleman's pocket-knife, and, while he described his own action as taken in self-defence, he made no mention whatever of a knife in Distleman's hand. Indeed, in his first statement to the police, he made no mention of any attack on him by Distleman at all. At the trial, however, after hearing the police evidence, he amended his previous story and declared that Distleman attacked him with the open pen-knife, and that when coming up the stairs to enter the club he had heard a voice behind him like Fletcher's saying: "Let's knife him." No other witness saw any knife in Distleman's hand, or heard Fletcher's previous remark, though it would appear that some of these witnesses, if their statements are correct, should have done so.

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The main case set up on behalf of the appellant at the trial was self-defence, and the learned judge devoted the first portion of a very careful summing-up to this question. The appellant's counsel found no fault with this part of the judge's charge at all. It was in fact, if anything, too favourable to the appellant, for Macnaghten J. did not invite the jury to consider whether, even if it were true that the appellant was menaced with the pen-knife, that would justify the use of the appellant's terrible weapon so as to constitute a case of necessary self-defence, nor did the learned judge make any observations on the question whether the appellant could not have escaped from the threatened danger by retreating from the club. The learned judge was content that the jury should deal with the question of self-defence on the basis that, if they believed the appellant's story at the trial about Distleman advancing with the open pen-knife in his hand, they should return a verdict of "not guilty." The jury's verdict shows

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that they disbelieved the appellant's story. Self-defence by the use of so deadly a weapon could not be made out if the appellant was never threatened with the pen-knife, and the learned judge, accordingly, proceeded to charge the jury on the alternative view that, although, if the appellant was disbelieved, self-defence must be rejected, yet the circumstances might still justify the jury in returning a verdict of manslaughter rather than of murder. It is to a part of the learned judge's summing-up on this topic that objection is taken, and it is contended for the appellant that the language of Macnaghten J. was not in accord with the law laid down by this House in *Woolmington's* case (1).

Although the appellant's case at the trial was in substance that he had been compelled to use his weapon in necessary self-defence—a defence which, if it had been accepted by the jury, would have resulted in his complete acquittal—it was undoubtedly the duty of the judge, in summing up to the jury, to deal adequately with any other view of the facts which might reasonably arise out of the evidence given, and which would reduce the crime from murder to manslaughter. The fact that a defending counsel does not stress an alternative case before the jury (which he may well feel it difficult to do without prejudicing the main defence) does not relieve the judge from the duty of directing the jury to consider the alternative, if there is material before the jury which would justify a direction that they should consider it. Thus, in *Rex v. Hopper* (2), at a trial for murder the prisoner's counsel relied substantially on the defence that the killing was accidental, but Lord Reading C.J., in delivering the judgment of the Court of Criminal Appeal, said (3): "We do not assent "to the suggestion that as the defence throughout the trial "was accident, the judge was justified in not putting the "question as to manslaughter. Whatever the line of defence "adopted by counsel at the trial of a prisoner, we are of opinion "that it is for the judge to put such questions as appear to "him properly to arise upon the evidence, even although "counsel may not have raised some question himself. In

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(1) [1935] A. C. 462. (2) [1915] 2 K. B. 431. (3) Ibid. 435.

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To avoid all possible misunderstanding, I would add that this is far from saying that in every trial for murder, where the accused pleads not guilty, the judge must include in his summing-up to the jury observations on the subject of manslaughter. The possibility of a verdict of manslaughter instead of murder only arises when the evidence given before the jury is such as might satisfy them as the judges of fact that the elements were present which would reduce the crime to manslaughter, or, at any rate, might induce a reasonable doubt whether this was, or was not, the case. Murder by secret poisoning, for example, does not give room for the defence that, owing to provocation received, the administration of the poison should be treated as manslaughter. On the other hand, if the defence to a charge of murder by poisoning was that the accused never administered the poison at all, the judge might very well be obliged to direct the jury on the alternative view that the administration was accidental, if the facts proved reasonably admitted this as a possible interpretation, even though the defence had not relied on the alternative.

In the present case, the appellant's counsel contended that the learned judge should have directed the jury as to what would amount to provocation sufficient to reduce the felonious act to manslaughter, and should have told them that, if they took the view that the appellant's act was provoked in this sense, they should acquit him of murder, and moreover that if, without being satisfied on the point, they felt a reasonable doubt whether the act was or was not so provoked, the appellant was still entitled to be acquitted of murder and should be found guilty only of manslaughter. All this, however,

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depends on the view that there was evidence before the jury which might, if believed, be regarded as amounting to sufficient provocation. It is here, I think, that the contention for the appellant breaks down.

It is not all provocation that will reduce the crime of murder to manslaughter. Provocation, to have that result, must be such as temporarily deprives the person provoked of the power of self control, as the result of which he commits the unlawful act which causes death. "In deciding the question "whether this was or was not the case, regard must be had to "the nature of the act by which the offender causes death, "to the time which elapsed between the provocation and the "act which caused death, to the offender's conduct during "that interval, and to all other circumstances tending to show "the state of his mind": Stephen's Digest of the Criminal Law, art. 317. The test to be applied is that of the effect of the provocation on a reasonable man, as was laid down by the Court of Criminal Appeal in *Rex v. Lesbini* (1), so that an unusually excitable or pugnacious individual is not entitled to rely on provocation which would not have led an ordinary person to act as he did. In applying the test, it is of particular importance (a) to consider whether a sufficient interval has elapsed since the provocation to allow a reasonable man time to cool, and (b) to take into account the instrument with which the homicide was effected, for to retort, in the heat of passion induced by provocation, by a simple blow, is a very different thing from making use of a deadly instrument like a concealed dagger. In short, the mode of resentment must bear a reasonable relationship to the provocation if the offence is to be reduced to manslaughter.

Before, therefore, Macnaghten J.'s summing-up can be criticized on the ground that it did not deal adequately with the topic of provocation, we have to see what was the extent of the provocation as disclosed by the evidence which the jury had to consider, and for this purpose we have to exclude altogether the allegation made by the appellant that he heard the voice of Fletcher threatening him with "knifing," and that

(1) [1914] 3 K. B. 1116.

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Distleman came at him with an open pen-knife in his hand. The judge had already instructed the jury fully on these matters and had directed the jury to acquit the appellant altogether if they felt they could accept the appellant's story. The alternative case, therefore, as to which it is suggested that a defence of provocation was open, must be regarded on the basis that the appellant's story was rejected. In that view the only knife used in the struggle was the appellant's dagger, and this followed Distleman's coming at him and aiming a blow with his hand or fist. Such action by Distleman would not constitute provocation of a kind which could extenuate the sudden introduction and use of a lethal weapon like this dagger, and there was, therefore, on the assumption that the appellant's evidence was rejected, no adequate material to raise the issue of provocation. The learned judge, indeed, in his summing-up never uses the word "provocation" as the ground on which a verdict of manslaughter might be based. The passage complained of in the summing-up runs as follows: "If you think that there was such a disturbance going on, unprovoked by him—he was not justified, of course, in using the dagger; assuming you reject the plea of self-defence, that cannot be justified—but if in the whole of the circumstances, as far as you know them, having regard to the character of the people there, and the sort of conduct which was going on in such a place, you think that the blow may have been struck without any premeditation and in the excitement of the disturbance, whatever it was, it seems to me you might be justified in returning the verdict of manslaughter." It seems probable that the judge in this passage was not referring to the defence of provocation, but rather had in mind the excuse which in the old books went by the name of "chance-medley": see, for example, Blackstone, Bk. IV., p. 184. But, however the defence may be classified, the verdict should not, in my opinion, be upset on the ground of the above extract from the judge's charge. It was argued that the judge, instead of saying that the jury "might" be justified, should have told the jury that, if they thought that the blow might have been struck

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without any premeditation and in the excitement of the disturbance, they "should" return a verdict of manslaughter. Such an argument refines too much. The sentence must be read as a whole, and a conviction ought not necessarily to be quashed by picking a quarrel with a single word. I am satisfied that a jury would not be misled by the judge's phrasing, and the word "might" is to be explained by the preceding use of the word "may." In my opinion, moreover, there was not sufficient evidence (once the story of being attacked with the pen-knife was discarded) to justify a verdict of manslaughter arising from the use of the dagger.

As regards the more general question with which the Attorney-General asks the House to deal, I would formulate the following propositions:—

(1.) *Woolmington's* case (1) is concerned with explaining and reinforcing the rule that the prosecution must prove the charge it makes beyond reasonable doubt, and, consequently, that if, on the material before the jury, there is a reasonable doubt, the prisoner should have the benefit of it. The rule is of general application in all charges under the criminal law. The only exceptions arise, as explained in *Woolmington's* case (1), in the defence of insanity and in offences where onus of proof is specially dealt with by statute. Thus, when a prisoner is charged with murder and felonious homicide is proved against him, if the jury, when considering the evidence as a whole at the conclusion of the case, are left in reasonable doubt whether the homicide proved is not manslaughter, the jury should return a verdict of manslaughter. *Woolmington's* case (1) was one in which the defence to the charge of murder was that of pure accident in circumstances not alleged to amount to criminal negligence. The prisoner gave evidence to that effect and my noble and learned friend, Lord Sankey, lays it down that "if the jury are either satisfied with his explanation or, upon a review of all the evidence, are left in reasonable doubt whether, even if his explanation be not accepted, the act was unintentional . . . , the prisoner is entitled to be acquitted." A proposition to the same effect,

(1) [1935] A. C. 462, 482.

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but in different language, had been laid down by Lord Reading C.J., in connection with a charge of receiving recently stolen goods, in *Rex v. Abramovitch* (1), and was approved in the *Woolmington* decision (2). The law on this subject is thus finally established and is, I think, perfectly clear.

(2.) The language employed by Lord Sankey does not assert and does not imply that in every charge of murder, whatever the circumstances, the judge ought to devote part of his summing-up to directing the jury on the question of manslaughter or the jury ought to consider it. If the evidence before the jury at the end of the case does not contain material on which a reasonable man could find a verdict of manslaughter instead of murder, it is no defect in the summing-up that manslaughter is not dealt with. Taking, for example, a case in which no evidence has been given which would raise the issue of provocation, it is not the duty of the judge to invite the jury to speculate as to provocative incidents, of which there is no evidence and which cannot be reasonably inferred from the evidence. The duty of the jury to give the accused the benefit of the doubt is a duty which they should discharge having regard to the material before them, for it is on the evidence, and the evidence alone, that the prisoner is being tried, and it would only lead to confusion and possible injustice if either judge or jury went outside it.

(3.) There is no prescribed formula for summing-up in a trial for murder, but the essential rules on this particular matter are as above stated. A good example of the proper direction is, as this House in *Woolmington's* case (2) pointed out, that of Finlay J. (as he then was) at the abortive trial.

(4.) Our attention was called to the recent decision of the Court of Criminal Appeal in *Rex v. Prince* (3), where the court reduced the jury's verdict of murder to manslaughter on the ground that the trial judge did not give a direction to the jury in accordance with the decision in *Woolmington's* case (2). *Prince's* case (3) was one in which the defence pleaded that there was provocation sufficient to reduce the charge to

(1) (1914) 11 Crim. App. Rep. 45, 49.

(3) [1941] 3 All E. R. 37.

(2) [1935] A. C. 462, 467.

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manslaughter. The Court of Criminal Appeal must have proceeded on the view that the jury were not adequately directed that reasonable doubt whether such provocation existed, as opposed to confident assurance that it did, was sufficient to require the milder view to be taken. There is no reason to repeat to the jury the warning as to reasonable doubt again and again, provided that the direction is plainly given.

(5.) In *Woolmington's* case (1), the sentence already quoted, which ends "the prisoner is entitled to be acquitted," should, of course, be understood as meaning "the prisoner is entitled to the benefit of the doubt." If the jury are left in reasonable doubt whether the act was "unintentional," i.e., a pure accident without criminal negligence, the verdict should be not guilty. If they are left in reasonable doubt whether the act was "provoked," i.e., perpetrated under the impulse of provocation as above defined, the prisoner should be found guilty of manslaughter.

My Lords, the House, in dealing with these unusual appeals in a criminal case, confines itself entirely to questions of law. The conclusion on the facts is for the jury, and the decision as to punishment rests elsewhere. There is no error of law in Macnaghten J.'s summing-up which would justify the House in allowing the appeal and I, therefore, move that the appeal be dismissed.

VISCOUNT SANKEY. My Lords, I entirely agree.

LORD RUSSELL OF KILLOWEN. My Lords, I also agree.

LORD WRIGHT. My Lords, I also agree.

LORD PORTER. My Lords, I concur in the reasoning of, and the result arrived at by, the noble Lord on the Woolsack.

Appeal dismissed.

Solicitors for appellant : *Addis, Edwards & Co.*

Solicitor for respondent : *Director of Public Prosecutions.*

(1) [1935] A. C. 462, 482.

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